

25CHCV02722 25CHCV02722

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Case Number: 25CHCV02722 Hearing Date: September 3, 2026 Dept: F47

Dept. F47

Date: 9/2/26

TRIAL DATE: 4/3/28

Case #25CHCV02722

MOTION TO

COMPEL FURTHER RESPONSES

(Requests for

Production of Documents, Set 1)

Motion filed on 3/24/26.

MOVING PARTY: Plaintiff Luca Sirico

RESPONDING PARTY: Defendant Henry Mayo Newhall Memorial Hospital

NOTICE: ok

RELIEF REQUESTED: An order compelling Defendant

Henry Mayo Newhall Memorial Hospital to provide further, verified

code-compliant responses to Requests for Production of Documents, Set 1, Nos. 10,

11, 12, 25, 26, 27, 30, 31, 35, 37, 38, 44, 45, 46, 48, 50, 61, 82, 87, 92, 93,

94, 95, 96, 97, 98, 99, 100, 101, 102, 103, 104, 105, 106, 107, 108, 109, 110,

111 with an accompanying production of all responsive documents within 10 days

from the date of the hearing on this motion.

RULING: The motion is granted, in part, and denied, in part, as set forth below.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of the care and treatment received by Plaintiff Nicole Sirico (Nicole) and Plaintiff Luca Sirico (Luca) (collectively, Plaintiffs) during the labor, delivery and birth of Luca at Defendant Henry Mayo Newhall Memorial Hospital (Henry Mayo) on or around 8/27/24.

Plaintiffs contend that due to delayed and improper treatment during labor and delivery, Luca was deprived of oxygen, suffered head compression during delivery, and suffered severe and permanent injuries, including but not limited to, brain damage, and will need significant skilled care for the rest of his life.

On 7/31/25, Plaintiffs filed this action against Henry Mayo; Jerry Izu, M.D.; Valencia Gynecology Associates, Inc. and Does 1-50 alleging causes of action for: (1) Negligence and (2) Corporate Negligence. On 9/26/25, Luca served Henry Mayo with Requests for Production, Set 1. (Teixeira Decl., Ex.1). After requesting and being granting multiple extensions, Henry Mayo served responses on 1/9/26. (Id., Ex.2). On 1/30/26, Plaintiffs counsel sent a meet and confer email regarding deficient responses. (Id., Ex.3). The parties agreed upon a one-month extension; however, despite further attempts by Plaintiffs' counsel to meet and confer, defense counsel never responded. (Id., Ex.4-5).

Therefore, on 3/24/26, Luca filed and served the instant motion seeking an order compelling Henry Mayo to provide further, verified code-compliant responses to Requests for Production of Documents, Set 1, Nos. 10, 11, 12, 25, 26, 27, 30, 31, 35, 37, 38, 44, 45, 46, 48, 50, 61, 82, 87, 92, 93, 94, 95, 96, 97, 98, 99, 100, 101, 102, 103, 104, 105, 106, 107, 108, 109, 110, 111 with an accompanying production of all responsive documents within 10 days from the date of the hearing on this motion. Henry Mayo has opposed the motion and Luca has filed a reply to the opposition.

ANALYSIS

The reply indicates that Luca withdraws his request that Henry

Mayo supplement its responses to Requests Nos. 31, 44, 61, 82 and 87.

Plaintiff improperly includes Requests Nos. 10-12, 31, 35, 50, 82 and 87 in the instant motion which only seeks and cites authority for an order compelling further responses (e.g. CCP 2031.310) when Plaintiff actually seeks an order compelling compliance with the responses to these requests. (See Motion, p.8:12-18; Separate Statement, p.3:3-p.6:19). A motion to compel compliance with a response to a document request falls under CCP 2031.320 which is not cited in Plaintiff's motion. As such, the motion is denied as to Requests Nos. 10-12, 35 and 50 without prejudice to Plaintiff making a properly noticed and supported motion to compel compliance. As noted above, Plaintiff has withdrawn the motion as to Requests Nos. 31, 82 and 87.

With regard to the remaining Requests which are the subject of the motion, the following analysis applies.

The scope of discovery is broad allowing parties to "obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action...if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence" unless otherwise limited by court order. See CCP 2017.010. Courts liberally construe discovery requests in favor of permitting discovery. See Colonial Life & Accident Insurance Co. (1982) 31 C3d 785, 790; Puerto (2008) 158 CA4th 1242, 1249.

Upon receipt of responses to requests for production, the propounding party may move for an order compelling further responses if, among other things, the propounding party deems an objection in the response is without merit or too general. See CCP 2031.310(a)(3).

Henry Mayo's objections to Requests Nos. 30, 37, 38 and 48 on the grounds that they are overbroad making them unduly burdensome, oppressive and harassing and that they seek documents that are not relevant and not reasonably calculated to lead to the discovery of admissible evidence have merit. Request 30 seeks the table of contents for all hospital nursing policy and procedure manuals which includes

units to which neither Plaintiff was admitted.

Requests 37 and 38 seek all documents or “materials” mentioning either

Plaintiff and set forth a non-exclusive list of possible responsive documents. Such requests encompass documents which could

have nothing to do with this case (e.g., if Nicole sought treatment at the hospital for something unrelated to the pregnancy; visitor logs mentioning either Plaintiff, etc.). It is not clear

exactly what documents Plaintiff seeks in Request 48 which asks for “[a]ny documents that refer or relate to labor and delivery nursing competency in effect at HENRY MAYO NEWHALL MEMORIAL HOSPITAL on August 27, 2024.”

Counsel for the parties should meet and confer to attempt

to come to an agreement regarding

narrowing the scope of these requests.

If an agreement cannot be reached, Plaintiffs should serve more narrowly drawn requests.

Although Henry Mayo has asserted other objections in

response to Requests 25, 26, 27, 45, 46 and 92-11, the opposition to the motion

focuses solely on the arguments that responsive documents are immune from

discovery pursuant to the Patient Safety Act, Evidence Code 1156 and/or

Evidence Code 1157.

Evidence Code 1156(a) provides that “[i]n-hospital

medical or medical-dental staff committees of a licensed hospital may engage in

research and medical or dental study for the purpose of reducing morbidity or mortality, and may make findings and recommendations relating to such purpose.

Except as provided in subdivision (b), the written records of interviews, reports, statements, or memoranda of such in-hospital medical or medical-dental staff committees relating to such medical or dental studies are subject

to Title

4 (commencing with Section 2016.010) of Part 4 of the

Code of Civil Procedure (relating to discovery proceedings) but, subject to

subdivisions (c) and (d), shall not be admitted as evidence in any action or

before any administrative body, agency, or person.” (emphasis added). As such, Evidence Code 1156 does not bar discovery. Information/documents which may not be

admissible may still be discoverable as it/they may lead to the discovery of other admissible evidence.

Evidence Code 1157(a) provides, in relevant part, that “[n]either

the proceedings nor the records of organized committees of medical . . . or of a peer review body, as defined in Section 805 of the Business and Professions Code, having the responsibility of evaluation and improvement of the quality of care rendered in the hospital, or for that peer review body. . . shall be subject to discovery.”

The Patient Safety and Quality Improvement Act makes only “patient safety work product” privileged.

See 42 U.S.C. §299b-22(a).

The term reaches only material that is “assembled or developed by a provider for reporting to a patient safety organization and [is] reported to a patient safety organization,” and material that “identif[ies] or constitute[s] the deliberations or analysis of, or identif[ies] the fact of reporting pursuant to, a patient safety evaluation system.” (Id., § 299b-21(7)(A)).

Congress then excluded, in terms,

“information that is collected, maintained, or developed separately, or exists separately, from a patient safety evaluation system” — adding that “[s]uch separate information or a copy thereof reported to a patient safety organization shall not by reason of its reporting be considered patient safety work product.” (Id., § 299b-21(7)(B)(i)-(ii); accord 42 C.F.R. § 3.20 [definition of “patient safety work product,” par. (2)(i)]). The Act disclaims any effect on discovery of excluded information or on “a provider’s recordkeeping obligation ... under Federal, State, or local law.” 42 U.S.C. § 299b-21(7)(B)(iii).

Henry Mayo has failed to establish that any/all documents responsive to Requests 25, 26, 27, 45, 46 and 92-111 are privileged. Moreover, for responsive documents which do fall within any such privilege, Henry Mayo must provide a privilege log pursuant to CCP 2031.240(c).

CONCLUSION

The motion is moot with regard to Requests 31, 44, 61, 82 and 87 as the reply indicates that the motion is withdrawn as to these requests.

The motion is denied as to Requests 10-12, 35 and 50 without prejudice to Plaintiff Luca Sirico making a properly noticed and supported motion to compel compliance under CCP 2031.320.

The motion is denied as to Requests 30, 37, 38 and 48.

The motion is granted as to Requests 25, 26, 27, 45, 46, 92-111. Further responses are due within 30 days.